

Shri S R Jagganna vs Smt Gayathri on 21 June, 2024

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RSA NO.2150 OF 2008
c/w RSA NO.2033 OF 2013

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 21ST DAY OF JUNE, 2024

BEFORE

THE HON'BLE MS.JUSTICE J.M.KHAZI

R.S.A.NO.2150 OF 2008
C/W

R.S.A.NO.2033 OF 2013

IN R.S.A.NO.2150 OF 2008

BETWEEN:

SHRI S R JAGGANNA
S/O REDDY RAMASWAMY
AGED ABOUT 57 YEARS
R/AT DODDAGANJUR VILLAGE & POST
KASABA HOBLI,
CHINTAMANI TALUK - 563 125

.....APPELLANT

(BY SRI. V VISHWANATHA SETTY, ADVOCATE)

AND:

1. SMT GAYATHRI
D/O S.R.JAGGANNA
AGED ABOUT 27 YEARS

2. SMT SHANTHAMMA
W/O S.R.JAGGANNA
AGED ABOUT 52 YEARS

BOTH ARE R/AT DODDAGANJUR VILLAGE & POST
KASABA HOBLI
CHINTAMANI TALUK - 563 125

.....RESPONDENTS

(BY SRI. M.A.VENUGOPAL, ADVOCATE AND
SMT. AFSARUNNISA, ADVOCATE FOR R1;
R2 IS SERVED)

THIS RSA IS FILED UNDER SECTION 100 OF THE CPC
PRAYING TO SET ASIDE THE IMPUGNED JUDGMENT AND

DECREE PASSED BY THE HON'BLE CIVIL JUDGE (SR. DN.)
AND JMFC, CHINTAMANI IN R.A.NO.68/2004 DATED
17.07.2008 AND IMPUGNED JUDGMENT AND DECREE PASSED
BY THE PRINCIPAL CIVIL JUDGE (JR. DN.) AND JMFC,
CHINTAMANI IN O.S.NO.161/2001 DATED 30.06.2004 BY
ALLOWING THE ABOVE APPEAL IN THE INTEREST OF
JUSTICE.

IN R.S.A.NO.2033 OF 2013

BETWEEN:

1. SHRI JAYARAMA REDDY
S/O G R JAGANNA
AGED ABOUT 23 YEARS
2. KUM SWETHA
D/O G R JAGANNA
AGED ABOUT 18 YEARS
3. KUM SARITHA
D/O G R JAGANNA
AGED ABOUT 15 YEARS
REP. BY HER BROTHER
JAYARAMA REDDY
S/O G R JAGANNA

ALL ARE R/AT DODDAGANJUR VILLAGE
KASABA HOBLI, CHINTAMANI TALUK - 563 125

.....APPELLANTS

(BY SRI. VISHWANATHA SETTY V, ADVOCATE)

AND:

1. SHRI G R JAGANNA
S/O REDDY RAMASWAMY
AGED ABOUT 59 YEARS
R/AT DODDAGANJUR VILLAGE
KASABA HOBLI
CHINTAMANI TALUK - 563 125
2. SMT GAYATHRI
D/O G R JAGANNA
AGED ABOUT 29 YEARS

BOTH ARE R/AT
DODDAGANJURU VILLAGE
KASABA HOBLI,
CHINTAMANI TALUK - 563 125

.....RESPONDENTS

(BY SRI. M.A.VENUGOPAL, ADVOCATE AND
SMT. AFSARUNNISA, ADVOCATE FOR R2;
R1 IS SERVED)

THIS RSA IS FILED UNDER SECTION 100 OF THE CPC
PRAYING TO SET ASIDE THE IMPUGNED JUDGMENT AND
DECREE PASSED BY THE HON'BLE SENIOR CIVIL JUDGE AND
JMFC, CHINTAMANI IN R.A.NO.61/2011 DATED 03.09.2013
AND IMPUGNED JUDGMENT AND DECREE PASSED BY THE
ADDITIONAL CIVIL JUDGE AND JMFC, CHINTAMANI IN
O.S.NO.188/2008 DATED 27.08.2011 BY ALLOWING THE
ABOVE APPEAL IN THE INTEREST OF JUSTICE.

THESE APPEALS HAVING BEEN HEARD AND RESERVED
ON 16.02.2024, COMING ON FOR PRONOUNCEMENT OF
JUDGMENT THIS DAY, THE COURT DELIVERED THE
FOLLOWING:

COMMON -JUDGMENT

These two appeals are directed against concurrent
judgment and decree of the trial Court and First
Appellate Court, whereby suit filed by Smt. Gayathri,
daughter of first wife of S.R. Jaganna came to be
decreed, granting half share in the suit schedule
properties, whereas the suit filed by the children of
second wife of the said S.R. Jaganna for partition and
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separate possession in the suit schedule properties came
to be dismissed.

2. Smt. Gayathri filed O.S.No.161/2001 against
her father i.e defendant No.1 S.R. Jaganna and mother

Shantamma, seeking partition and separate possession of 1/3 rd share in the suit schedule properties, contending that they are in exclusive possession and enjoyment of defendant No.1. Since he has deserted plaintiff and defendant No.2 Shanthamma, they filed petition under Section 125 Cr.P.C and secured order for maintenance. Alleging that defendant No.1 S.R. Jaganna is trying to alienate suit schedule properties and she demanded partition without any succession and hence the suit.

3. On the other hand O.S.No.188/2008 came to be filed by Jayaram Reddy, Sweta and Saritha, for partition and separate possession of their share in the suit schedule properties against S.R. Jaganna and Gayathri, who is plaintiff in the first suit claiming that they are the children of defendant No.1 S.R. Jaganna

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through his second wife, Chandramma. They admit that defendant No.2 Gayathri is the daughter of defendant No.1 S.R. Jaganna through his first wife Shantamma. They have contended that suit schedule properties are the ancestral and joint family properties of themselves and defendants and they are entitled for partition and separate possession of specific share. They have also stated that defendants colluding with Shanthamma have

filed 0.S.161/2001 to defeat their rights.

4. Defendant No.1 has filed written statement admitting that plaintiffs in 0.S.No.188/2008 are his children through his second wife. He has denied that suit schedule properties are ancestral and joint family properties. He has also alleged alienation of some of the properties.

5. Based on the pleadings, the trial Court has framed necessary issues.

6. In 0.S.No.161/2001, plaintiff examined herself as PW-1 and relied upon Ex.P1 to 7.

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7. On behalf of defendants, defendant No.1 S.R. Jaganna and one witness are examined as DW-1 and 2.

8. In 0.S.No.188/2008 plaintiff No.1 is examined as PW-1 and one witness as PW-2. Ex.P1 to 8 are marked on behalf of the plaintiffs.

9. On behalf of defendants, both defendants are examined as DW-1 and 2.

10. In both suits the trial Courts held that suit schedule properties are the ancestral and joint family properties of defendant No.1 S.R. Jaganna and plaintiff

Gayathri and she is entitled for half share in all the suit schedule properties. In O.S.No.188/2008, the trial Court held that plaintiff therein are the children of defendant No.1 through his second wife. It held that they are not entitled for any share in the ancestral and joint family properties. Consequently, it came to be dismissed.

11. Against the judgment and decree of the trial Courts, the children of second wife of defendant No.1

S.R. Jaganna filed R.A.No.68/2004 and R.A.No.61/2011.

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12. Both appeals came to be dismissed confirming the judgments and decrees of the trial Court.

13. Against these two concurrent judgments and decrees, the children of second wife of defendant No.1 S.R. Jaganna have filed the present appeals, contending that the trial Court has erred in granting half share to plaintiff Gayathri, while she had sought for only one third share. While it is rightly held that plaintiffs are the children of defendant No.1 S.R. Jaganna through his second wife, it has erred in not allotting any share to them.

14. In RSA.No.2150/2008 vide order dated 29.1.2010, the following substantial question of law was framed:

"Whether the division of the suit properties is in accordance with law"

15. In RSA.No.2033/2013, vide Order dated 02.06.2015, the following question of law is framed:
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"Whether the Courts below have wrongly interpreted Section 16 of Hindu Marriage Act in dismissing the suit of the plaintiffs, which is confirmed by the First Appellate Court."

16. From the evidence placed on record in both suits, it is established that suit properties have fallen to the share of defendant No.1 S.R. Jaganna and therefore, as the daughter of his first wife, plaintiff Gayathri is entitled for definite share in the same along with defendant No.1 S.R. Jaganna. Though plaintiff Gayathri has denied that the plaintiffs of the other suit are the children of defendant No.1 S.R. Jaganna, in his written statement, he has admitted the said fact and also deposed to that effect. The findings of the trial Court that plaintiffs in O.S.No.188/2008 are the children of defendant No.1 S.R. Jaganna is not challenged by Gayathri, who is his daughter through first wife.

17. Section 5 of Hindu Marriage Act prescribe the conditions required to be fulfilled for a valid Hindu marriage. Section 11 of Hindu Marriage Act stipulates that a marriage solemnized after the commencement of

the Hindu Marriage Act shall be null and void and be so
declared by a decree of nullity, if,

(1) Either party has a spouse living at the time
of the marriage;

(2) Parties are within the degrees of prohibited
relationship, except where a custom or usage
governing them permits of a marriage;

(3) Parties are Sapindas of each other, unless a
custom or usage governing them permits of a
marriage.

18. When the marriage of defendant No.1 S.R.

Jaganna with Chandramma- the mother of plaintiffs in

O.S.No.188/2008 was performed he was already married

to Shanthamma, the mother of plaintiff Gayathri and it

was subsisting. Therefore his marriage to Chandramma is

a void marriage and as such plaintiffs in

O.S.No.188/2008 cannot claim right in the ancestral and

joint family properties as co-parceners on par with that

of the daughter of his first wife.

19. Section 16 of the Hindu Marriage Act was

enacted protecting the legitimacy of children of void and

voidable marriages. In Parayankandiyal Eravath

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Kanapraivan Kalliani Amma Vs K. Devi (Kalliani

Amma)1, Honourable Supreme Court noted the

anomalies in the said provision before the amendment.

Vide Act 68 of 1976, it was amended.

The amended

Section 16, reads as under;

"16. Legitimacy of children of void and voidable marriages:- (1) Notwithstanding that marriage is null and void under Section 11, any child of such marriage who would have been legitimate if the marriage had been valid, shall be legitimate, whether such child is born before or after the commencement of the Marriage Laws (Amendment) Act, 1976 (68 of 1976), and whether or not a decree of nullity is granted in respect of that marriage under this Act and whether or not the marriage is held to be void otherwise than on a petition under this Act.

(2) Where a decree of nullity is granted in respect of a voidable marriage under Section 12, any child begotten or conceived before the decree is made, who would have been the legitimate child of the parties to the marriage if at the date of the decree it had been dissolved instead of being annulled, shall be deemed to be their legitimate child notwithstanding the decree of nullity.

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(1996) 4 SCC 76

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(3) Nothing contained in sub-section (1) or sub-section (2) shall be construed as conferring upon any child of a marriage which is null and void or which is annulled by a decree of nullity under Section 12, any rights in or to the property of any person, other than the parents, in any case where, but for the passing of this Act, such child would have been incapable of possessing or acquiring any such rights by reason of his not being the legitimate child of his parents."

20. In Jinia Keotin Vs Kumar Sitaram Manjhi

(Jinia Keotin)², a two Judge Bench of the Hon'ble

Supreme Court held that merely because the children

born of a void and illegal marriage have been

safeguarded under Section 16, they ought not to be

treated on par with children from a lawful marriage for

the purpose of inheritance of ancestral property of the

parents. In view of the express mandate of the

legislature in Section 16 (3), a child born from a void or

voidable marriage in respect of which a decree has been

passed would have no right to inheritance in respect of

ancestral or coparcenary property.

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(2003) 1 SCC 730

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21. The decision in Jinia Keotin was followed by

two judge bench in Neelamma Vs Sarojamma

(Neelamma)³ and Bharatha Matha Vs. R. Vijaya

Ranganathan (Bharatha Matha)⁴.

22. However, in Revanasiddappa and Anr Vs

Mallikarjun and Ors (Revanasiddappa), the Division

Bench of the Hon'ble Supreme Court doubted the

correctness of the above decisions and referred it to the

Full Bench.

23. The Full Bench of the Hon'ble Supreme Court

raised the following issues:

"Whether a child who is conferred with legislative legitimacy under Section 16(1) or 16(2) is, by reason of Section 16 (3), entitled to the ancestral/coparcenary property of the parents or is the child merely entitled to the self-earned/separate property of the parents" i.e

(i) Whether the legislative intent is to confer legitimacy on a child covered by Section 16 in a manner that makes them coparceners, and thus entitled to initiate, or get a share in the partition - actual or notional,

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(2006) 9 SCC 612

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(2010) 11 SCC 483

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(ii) At what point does a specific property transition into becoming the property of the parent. For, it is solely within such property that children endowed with legislative legitimacy, hold entitlement, in accordance with Section 16(3)."

24. Answering the reference, the Hon'ble Supreme Court held that child born from void or voidable marriage conferred legitimacy under Section 16 of Hindu Marriage Act is not a coparcener in Hindu Mitakshara joint family. However, such a child would be entitled to share of parents in coparcenary property in accordance with mandate of Section 6 of Hindu Succession (Amendment) Act 2005 with effect from 09.09.2000. As a child conferred legitimacy under Section 16 of Hindu Marriage Act having rights only in exclusive and absolute property

of parents, such a child cannot seek partition of the ancestral/Joint family/coparcenary property, in which parents have a share, during lifetime of parents.

25. It further held that as a consequence of substitution of Section 6, where a Hindu dies after commencement of Hindu Succession (Amendment) 2005

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with effect from 09.09.2005, not survivorship, but rule of devolution by testamentary or intestate succession of an interest of a deceased Hindu in property of a Hindu joint family governed by Mitakshara law has been made the norm. It further held that Hindu law recognises a branch of the family as a subordinate corporate entity, within the fold of the larger Coparcenary comprising many such branches. Even such branches can acquire, hold and dispose of family property, subject to certain limitations the nature of property held by such a branch, until partitioned among the members of the branch does not cease to be that of a joint family property of all the coparceners of the branch.

26. It further held that child conferred legitimacy under Section 16 of Hindu Marriage Act is not a coparcener, the branch comprises of the parents and his/her children from the valid marriage. As such, the property once partitioned from the larger coparcenary

and in the hands of the parents, for his/her own branch,
is not the parents separate property, until the partition
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happens within the branch. It continues to be the
coparcenary property in which the children from the valid
marriage have joint ownership. Thus, in view of the
restrictions in section 16(3) of Hindu marriage act, in this
property, not being the exclusive property of the parent,
a child covered by Sections 16(1) and 16(2) of Hindu
Marriage Act is not entitled for share.

27. The Hon'ble Supreme Court further held that
Section 10 Hindu Succession Act and Rule 2 provides that
the surviving son and daughters and mother shall each
take one share and the expression, surviving sons and
daughters in Section 10 of Hindu Succession Act has not
made any distinction based on legitimacy of the child.
Hence, in dividing the property of an intestate in terms of
Section 10 of Hindu Succession Act, no distinction can be
made on the basis of such a classification, once such a
child is deemed legitimate and under Section 16 of Hindu
Marriage Act.

28. Thus, in the light of the ratio in
Revanasiddappa, referred to supra, the evidence
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placed on record reveal that in the partition between S.R. Jaganna and his brothers, suit schedule properties have fallen to the share of S.R. Jaganna. It forms coparcener property between S.R. Jaganna and his daughter through the first wife. Therefore, as the children born through his second wife are not coparceners, suit properties are required to be partitioned between S.R. Jaganna and Gayathri, and each of them are entitled for half share.

29. Only after such partition, the properties fallen to the share of S.R. Jaganna being the 50% of suit schedule properties would become his exclusive property, in which all the class I heirs including the children born through the first wife and second wife are entitled for equal share after the death of S.R. Jaganna. During his lifetime, neither the children of first wife nor second wife can claim share in the 50% share, which fall to his share in the partition between him and his daughter through the first wife. Of course, S.R. Jaganna is at liberty to dispose of his share in favour of children of

his second wife, if he so desirous, through testamentary or intestate disposition.

30. Rightly the trial Court decreed the suit filed by the daughter of first wife, granting half share each in

favour of her and S.R. Jaganna and dismissed the suit filed by the children of second wife. Consequently, the First Appellate Court is also justified in dismissing the appeal filed by the children of second wife. Accordingly, the substantial question of law framed in RSA.No.2150/2008 is answered in the Affirmative and substantial question of law framed in RSA.No.2033/2013 is answered in the Negative. In the result, both Second appeals filed by S.R. Jaganna and the children of his second wife are liable to be dismissed and accordingly, the following:

ORDER

Both appeals are dismissed.

Sd/-

JUDGE RR